

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: July 13, 2026

Time: 2:00 PM

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1	Grant v. Newrez, LLC	O/C
2	Andrade v. Fitness on Fire LLC	Before the Court at present is the Motion to Tax Costs filed on 4/24/26 by Plaintiff Sisi Andrade ("Plaintiff"), regarding the Memorandum of Costs ("MOC") filed on 4/9/25 by Defendant Fitness on Fire, LLC ("Defendant"). If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. But if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761, 774.) Here, the Motion challenges each of the three categories claimed by Defendant in the MOC – Categories 1, 4 and 11. But for each of these categories, Defendant has responded with sufficient evidence to show that the sums claimed were reasonable, and reasonably necessary to the litigation. (See Ortiz Decl. ¶¶ 4-9.) Plaintiff's Motion is therefore DENIED. Defendant is to give notice of this ruling.

3	Shurtleff v. Home Depot U.S.A., Inc.	Defendants Werner Co. and Home Depot, U.S.A., Inc.'s motion to admit counsel Don Swaim pro hac vice is GRANTED. Counsel has submitted a verified application that substantially complies with the requirements of California Rules of Court, rule 9.40. Counsel for Defendants is ordered to give notice of this ruling.
4	Kadosh vs. General Motors, LLC	Plaintiff Briana L. Kadosh's ("Plaintiff") Motion for Attorney Fees and Costs ("Motion") is GRANTED. Plaintiff is the prevailing party in this action after settling defendant General Motors, LLC (Defendant). Pursuant to Civil Code section 1794, subdivisions (d) and (e), as the prevailing party on a lemon law matter, Plaintiff is entitled to recover reasonable attorney fees. (<i>Serrano v. Priest</i> (1977) 20 Cal. 3d 25, 49; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal. App. 4th 967, 998.) Plaintiff's counsel requests \$24,517.50 in attorney fees. The court, having reviewed the billing entries provided by Plaintiff's counsel, finds the \$525/hr. is reasonable. The hours billed are slightly excessive. Given how uncomplicated this matter was and how little was filed with the court, the court finds a reasonable number of hours to be 42.4. (<i>PCLM Group, Inc. vs. Drexler</i> (2000) 22 Cal.4th 1084, 1094-96.) The total attorney fee award is: \$525/hr. x 42.4 hrs. = \$22,260. The request for costs totaling \$3,911.44 is granted. As Plaintiff produced signed memorandum of costs, it falls on Defendant to show the costs were not reasonable. (<i>Nelson v. Anderson</i> (1999) 72 Cal. App. 4th 111, 131.) Defendant only objected to electronic filing fees and deposition transcription costs, both which are recoverable, without producing any evidence those costs were not properly incurred. As such, Defendant did not meet its burden and the court awards Plaintiff the full \$3,911.44. The total sum of attorney fees and costs awarded to Plaintiff against Defendant is: \$22,260 + \$3,911.44 = \$26,171. Plaintiff to give notice.
5	Alternative Payments International, LLC v. Creative Outdoor Distributors USA, Inc.	The Motion to Set Aside Orders, etc. filed on 5/4/26 by Judgment Debtors Brian Horowitz and Heather Smulson ("Debtors") is DENIED. A registered process server's declaration of service establishes a presumption that the facts stated in the return are true. (Ev. Code §647.) Judgment Creditor Alternative Payments International, LLC ("Creditor") has submitted proofs of service from a registered process server, asserting that personal service was effectuated on both Debtors on 10/24/25, for the Application and Order for Appearance and Examination for each, and again on 4/8/26, for the Notice of Ruling. (ROAs 161, 163, 170, 172, 176, 178, 229, 231, and 235.)

		Debtors assert here that they were not in fact personally served on either occasion. (See ROAs 181, 183, 205 and 207.) But they have failed to meaningfully respond to the declarations from the server, as reflected in ROAs 229 and 231, providing a physical description of each Debtor and stating the circumstances of the 4/8/26 service. The Motion thus fails to show that the requested relief is warranted here. Counsel for Creditor is to give notice of this ruling.
6	Auto Buyline Systems, Inc. vs. GB Auctions, Inc.	Defendant GB Auctions, Inc.'s ("Defendant") Motion for Stay is DENIED. The court first notes Defendant failed to provide any statute or code which permits the requested relief and the Motion may be denied solely on that basis. The issue before the court is whether this action, which is based upon a guaranty ("Guaranty") between Defendant and plaintiffs Auto Buyline Systems, Inc. and Thomas J. Harmon ("Plaintiffs" together) should proceed before liability has been determined on the underlying Asset Purchase Agreement ("APA"), which Defendant guaranteed by way of the Guaranty. Under the specific terms of the Guaranty, Plaintiffs may seek to recover any damages under the APA at any time regardless of whether liability has been determined on the APA. "A surety who has assumed liability for payment or performance is liable to the creditor immediately upon the default of the principal, and without demand or notice." (<i>Ralston-Purina Co. v. Carter</i> (1962) 210 Cal. App. 2d 372, 380; Civ. Code §§ 2787, 2806, 2807.) "In a guaranty of payment the liability was fixed by the failure of the principal debtor to pay at maturity or at the time when payment was guaranteed. It was immaterial whether the debtor could or could not pay the debt." (<i>Ingalls v. Bell</i> (1941) 43 Cal. App. 2d 356, 367.) "[R]emedies against the principal debtor must, of course, have been exhausted where the parties so provided in their contract. [Citations.] Under section 2807 of the Civil Code then in effect, a guarantor of payment or of performance was liable to the guarantee immediately upon the default of the principal and without demand or notice. <i>So there was no duty resting on the creditor to exhaust the remedies against the debtor, and mere delay or failure on the part of the creditor to proceed against the principal debtor did not exonerate the guarantor unless the contract of guaranty provided that such action must be taken</i>" [Emphasis added.] (<i>Ibid.</i>) "A guarantor had no right to compel the creditor to avail himself of the remedies against the debtor unless he paid the obligation, in which case he could have compelled the creditor to act by a proceeding in equity." (<i>Id.</i>, at 368.) "An action against a guarantor must be brought specially upon the contract of guaranty itself. [Citations.] The action so brought is not for the collection of the principal debt, as such, and is in fact independent of any action upon the principal obligation." (<i>Ibid.</i>)

		Defendant specifically agreed, “that in the event of a default by Buyer under the APA, beyond all applicable notice and cure periods, Seller may proceed against the Guarantor <i>before, after or simultaneously with proceeding against Buyer</i>. [¶]” [Emphasis added.] (Mitzev Decl., Ex. A ¶ 1.) “This Guaranty shall not terminated, affected, or impaired in any manner by reason of (1) the assertion by Seller against Buyer of any of the rights or remedies reserve to Seller pursuant to the provisions of the APA; 2) the commencement of summary or any other proceedings against Buyer; 3) the failure of Seller to enforce any of its rights against Buyer; . . . or 5) an assignment of the APA by Seller of Buyer.” (Mitzev Decl., Ex. A ¶ 2.) As the terms of the Guaranty specifically permit Plaintiffs to proceed in an action against Defendant at any time based on lack of full and timely payment under the APA, a determination of liability on the part of EBlock is not necessary before this matter can proceed. The two actions in question are separate and distinct as this one is based on a breach of the Guaranty and the other action is based upon a breach of the APA. The motion is denied. Plaintiffs to give notice.
7	Third Laguna Hills Mutual v. Glover	The unopposed motion by plaintiff Third Laguna Hills Mutual (Third Mutual) for an award of attorney’s fees against defendant Michael Glover is GRANTED. In the instant motion, plaintiff seeks attorney’s fees pursuant to Civil Code section 5975, subdivision (c), and Article XXI of the CC&Rs. The Court finds Third Mutual to be the prevailing party as it achieved the objectives of the litigation. (See, Complaint, generally; Kramer Decl. ¶¶6-9; <i>Hsu v. Abbara</i> (1995) 9 Cal.4th 863, 876; <i>Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 260–61.) “Once the trial court determined the Association to be the prevailing party in the action, it had no discretion to deny attorney fees.” (<i>Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 263) Here, Third Mutual seeks \$30,727.90 in fees. “The moving party has ‘the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.’” (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) Third Mutual has submitted invoices supporting the motion as well as declarations of counsel and has met its burden. The Court finds the fees reflected on the invoices reasonable. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095–1096 – discussing discretion of the court.) Finally, there is no opposition to the motion.

		Accordingly, the motion is GRANTED and the Court awards \$30,727.90 in attorney's fees in favor of Third Mutual and against Michael Glover. Third Mutual to submit a proposed judgment. Third Mutual to give notice of this ruling.
8	Dodson v. LaCilento	O/C
9	Ruffin v. OC Dental Corporation, Inc.	Defendant OC Dental Corporation, Inc.'s Motion for Summary Judgment/Adjudication is DENIED. OC Dental's Motion is based entirely on the assertion that plaintiff Ruffin did not exhaust her administrative remedies required under FEHA. This assertion is supported (1) by Plaintiff's response to Form Interrogatory No. 208.1, where Plaintiff indicated she did not file a complaint with any government agency regarding the alleged harassment, and (2) by Plaintiff's failure to produce a right to sue letter during discovery. This is sufficient to meet OC Dental's burden on summary judgment under CCP §473(p)(2). In response, Ruffin has shown a triable issue of material fact, that her administrative remedies were exhausted by receipt of a right-to-sue Notice/Letter. See, Plaintiff's Opposition to Defendant's Motion for Summary Judgment/Adjudication, Fact 6]; Declaration of Corey A. Hall. Although Plaintiff has apparently failed to file her referenced Compendium of Evidence with the Court, her attorney's declaration attests that a complaint was filed with the DFEH when issued a right to sue letter. In its Reply, OC Dental asks the Court not to consider Opposition evidence. In its discretion, the Court declines OC Dental's request. Any error by Plaintiff's counsel in responding to discovery should not result in Plaintiff's loss of her claims, particularly where there is evidence that the right to sue letter was provided to Jarrod Y. Nakano, Defendant's former counsel, in January of 2023. Whether the right to sue letter is authentic is a matter for trial, not a motion for summary judgment. The Court disregards the two Declarations filed with OC Dental's Reply because Reply Declarations are not authorized by statute, rule, or case law. [<i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 252] Plaintiff to give notice.
10	Lin v. Zhang	Before the Court is a motion by Defendants Ark Electronics USA, Inc. ("Ark"), Wen Xia Zhang, and E.J. Constantine (collectively, "Defendants") in which they seek to tax the memorandum of costs filed by Plaintiff Gary Lin at ROA 465. The motion is GRANTED in part, as set forth herein.

The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subd. (c).)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Automobile Association* (1993) 19 Cal.App.4th 761, 774.) "There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted." (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267) If the party seeking to tax costs makes a proper objection to an item in the cost bill, the burden then shifts back to the party claiming them as costs. (*Acosta v. SI Corp.* (2005) 129 Cal. App. 4th 1370, 1380.) The propriety of costs is a question of fact to be determined by the trial court. (*Jones, supra*, at 1266.)

Item 4: Deposition Costs - \$765: Defendants seek to tax the \$765 from the deposition of Zhang which is an entry labeled "Centerview/Emmes After Hours HVAC & Lighting at Deposition." Plaintiff explains that this is the charge from his office for lighting and air conditioning during the time he took Zhang's deposition. This is not a recoverable cost. The motion is **GRANTED** as to this item and the Court will **TAX \$765**.

Item 8: Witness Fees (Experts): Defendant states that "Lin submitted his section 998 offer to compromise on December 16, 2024." (Motion at 6:4) A copy of the Code of Civil Procedure Section 998 offer is attached to Feng's declaration as Exhibit 4. Defendants do not dispute the plaintiff's result at trial far exceeded the Section 998 offer.

Section 998(d) states: "(d) If an offer made by a plaintiff is not accepted and the defendant fails to obtain a more favorable judgment or award in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the defendant to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the plaintiff, in addition to plaintiff's costs."

Attached as Exhibits 1 and 2 to Ethan Feng's declaration are copies of the invoices from plaintiff's two experts, Renee Howdeshell

(Fulcrum Inquiry) and Dan Harris (Harris Sliwoski LLP). The Court has reviewed the invoices and finds the invoices sufficiently detailed, the rates reasonable and the work reasonably necessary to trial preparation. However, Defendants also object to the charges by experts which was for work done after the Section 998 Offer on 12/16/24. This argument has merit. The \$5,590 invoice by Harris states that the work is for time up through 11/15/24. This pre-dates the Section 998 offer and therefore the Court will TAX the entire bill for \$5,590. Also, the \$26,544 invoice by Howdeshell covers the period of 11/16/24 to 8/20/25. The plaintiff has failed to meet his burden to justify this expense because the invoice does not delineate the work done on particular days and therefore Court will TAX entire bill for \$26,544. In total, the motion to tax the expert charges is **GRANTED** and the Court will **TAX \$32,134**.

Models, Enlargements, and Photocopies of Exhibits – Attachment 13

CCP §1033.5(a)(13) states: "The following items are allowable as costs under Section 1032: ... (13) Models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact."

Plaintiff has submitted copies of the invoices from Re-Qwest at Exhibit 5 to the Ethan Feng Declaration. Based on the Court's review of the invoices, Mr. Feng's declaration explaining the costs, and the Court's familiarity with this case, the court finds the charges to be have been for copies reasonably helpful to the trier of fact. Therefore the motion is **DENIED** as to charges by Re-Qwest.

In addition to the copy charges, Defendants challenge the charge by Merritt Technologies for \$25,787.50. The parties refer to Merritt as a "Hot Seat Assistant." The invoice shows this company was present during trial and assisted plaintiff's counsel in his presentation of evidence. The court does not find this to be a recoverable cost. Accordingly the motion is **GRANTED** as to the Hot Seat Assistant charges shown on Exhibit 6 and the Court will **Tax \$25,787.50**.

Item 15 - Other: Defendants challenge the charges listed under Item 15 for obtaining copies of court documents and hiring a messenger to retrieve and transport plaintiff's counsel's trial materials back to counsel's office. The Defendants' arguments have merit. These are typical office expenses and not recoverable costs. The motion is **GRANTED** as to the \$44.20 in costs for four separate instances of "Documents ordered from OCSC website" (Motion at 10:2-3) and the \$330 charge for a "Messenger" to "Pickup [] Trial Materials from Fullerton Courthouse" (Motion at 10:14). The Court will **TAX \$374.20**.

In total, the motion is partially **GRANTED** and the Court will tax a total of 59,060.70. The remainder of the motion is **DENIED**. That means that the plaintiff is awarded costs in the total amount of **\$144,473.78**.

		Plaintiff shall give notice.
11	Tarver v. Bryenton	Defendants', Matthew T. Bryenton, D.C. and Bryenton Family Chiropractic, Motion to Compel Arbitration is GRANTED. Defendants have shown that there was a written agreement to arbitrate and Plaintiff refused to arbitrate. A party moving to compel arbitration satisfies its initial burden by producing a written arbitration agreement bearing the opposing party's signature. Only after the opposing party produces admissible evidence disputing the authenticity or execution of that agreement does the burden shift back to the petitioner to prove its existence by a preponderance of the evidence. <i>Condee v. Longwood Mgmt. Corp.</i> (2001) 88 Cal.App.4th 215, 218-219. Here, Plaintiff admits she signed the Arbitration Agreement as part of the intake paperwork she completed before treatment. There can be no doubt that it applied to the care she received from Defendants. That she felt rushed, or that she did not fully grasp the significance of the document does not make it unenforceable. Status conference re arbitration is set for November 6, 2026 at 9:30 am, in Dept. N17. Defendants to give notice.
12	Brookhurst 107, LLC v. Chang	The unopposed motion of defendant Julie Chang (Chang) for leave to file a second amended answer is GRANTED. (Code Civ. Proc., § 473(a)(1).) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Absent prejudice, delay alone is not ground for denial. If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. (<i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565.) The Court finds Chang has demonstrated the interests of justice would be served by allowing the amendment. Accordingly, the motion is GRANTED. Chang is to separately file and serve the proposed second amended answer which is attached to the motion at Exhibit A within 7 days. Chang shall give notice of this ruling.
13	Burke v. Benworth Capital Partners, LLC	Before the Court is a motion for attorney fees filed by defendants Benworth Capital Partners, LLC (Benworth) and Bernardo Navarro (Navarro)(collectively, Defendants) against plaintiff Griffin Burke (Plaintiff). For the reasons set forth below, the motion is GRANTED in the reduced amount of \$16,514.84.

Defendants' request for judicial notice is **GRANTED**.

Plaintiff's request for judicial notice is **DENIED** based on relevance. Plaintiff's evidentiary objections are **OVERRULED**.

Entitlement to Fees: Contractual attorney's fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A).) Under Civil Code Section 1717, in an action to enforce a contract authorizing an award of fees and costs to one party, the party "prevailing on the contract" is entitled to reasonable attorney's fees. (Civ. Code § 1717, subd. (a).) The "prevailing party on the contract" is the party who recovered a greater relief in the action on the contract." (Civ. Code § 1717, subd.(b)(1).)

There is no dispute Defendants are the prevailing parties in this action, having obtained a judgment following the Court's sustention of their demurrer. (ROA 182, 368.) The question is whether Defendants are prevailing parties "on the contract" for purposes of Section 1717.

Defendants produced the promissory noted dated March 24, 2021 ("Note") referenced in Plaintiff's complaint, which includes a unilateral attorney fee provision in favor of the lender. Where the contract specifics that attorney fees are recoverable by only one of the contracting parties, as a matter of law it will be read as authorizing a fee award to whichever party prevails in the litigation. (Civ. Code § 1717, subd. (a); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 611; *Pacific Custom Pools, Inc. v. Turner Const. Co.* (2000) 79 Cal.App.4th 1254, 1268.) Notwithstanding contrary language in the fee provision, the reciprocal right conferred by Civil Code section 1717 applies to an action on the contract regardless of who initiates the action. (*Pacific Custom Pools, Inc., supra*, 79 Cal.App.4th at 1268; *Boyd v. Oscar Fisher Co.* (1989) 210 Cal.App.3d 368, 380.)

Here, the attorney fee provision includes an action to "enforce the terms of this Note." (Navarro Decl., Ex. 1 at ¶ 6(B).) The reciprocal right conferred by Civil Code section 1717 applies where Plaintiff files an action to enforce the terms of the Note. (*Pacific Custom Pools, Inc., supra*, 79 Cal.App.4th at 1268.) Plaintiff's claims arise out of the alleged breach of the terms in the Note requiring Benworth to deliver the loan funds of \$10,097 as agreed. (FAC ¶¶ 61, 77.)

The Court rejects Plaintiff's argument that Benworth has not shown it currently owns or holds the Note. It is undisputed Benworth is a party to the Note, upon which Plaintiff sued Benworth. Plaintiff fails to cite to any competent authority that a party to a contract must produce evidence it currently owns or holds the contract to seek attorney fees thereunder. The cases cited by Plaintiff are inapposite.

The Court also rejects Plaintiff's argument Navarro is not entitled to fees. To establish entitlement to fees under Civil Code § 1717, a nonsignatory defendant must establish 1) it was sued on a contract with an attorney fee provision; 2) it prevailed on the contract

claim(s); and 4) the opponent would have a right to recover fees had he prevailed. (*Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 128-129.) A nonsignatory sued as though a party to the contract can recover fees as a prevailing party, i.e., because the nonsignatory would have been liable for fees had he lost, he is entitled to fees if he prevails. (*Mepco Services, Inc. v. Saddleback Valley Unified School Dist.* (2010) 189 Cal.App.4th 1027, 1045-1048.)

Here, Plaintiff sued both Benworth and Navarro for breach of the terms of the Note. Plaintiff alleges Navarro "all times mentioned in this complaint was the CEO and sole shareholder of Benworth" and sued Navarro as if he were a party to the Note. (FAC ¶¶ 5, 64-77; 123.) Because Navarro would have been liable for fees had he lost on Plaintiff's claims, Navarro is entitled to fees since he prevailed.

The Court finds Benworth and Navarro are both entitled to reasonable attorney fees and costs.

Reasonableness of Fees: Reasonable attorney's fees authorized by contract shall be awarded to the prevailing party as "fixed by the court." (Civ. Code § 1717, subd. (a).) The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Generally, courts employ the lodestar method to determine if attorney's fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.)

The Court finds the hourly rates sought by Defendants ranging from \$290 to \$370 reasonable. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 695-696 [a "reasonable" hourly rate is the prevailing rate for similar work in the community where the court is located]; *Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 [the court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate]).

As for time spent, Defendants seek a total of 76 hours, inclusive of fees incurred and anticipated on this motion. The Court declines to apportion fees based on contract versus noncontract claims because counsel's services were related to an issue common to all causes of action, i.e., the res judicata defense. (*Amtower v. Photon Dynamics, Inc.* (2008) 158 Cal.App.4th 1582, 1604-1605 [allocation not required when the issues are "so interrelated that it would have been impossible to separate them into claims for which attorney fees are properly awarded and claims for which they are not].)

However, the Court finds the time spent defending a separate action, OCSC Case no. 2022-01296496 ("2022 case") is not recoverable. Defendants needed to have filed a timely motion for attorney fees in that action showing entitlement to Section 1717 fees as the prevailing party in that action. The time awarded is reduced by 23 hours.

		The Court also declines to award time spent on Defendants' ex parte application to deem the demurrer and motion to strike as timely (01/26/24 to 01/30/24). The application was based on attorney error and should not be borne by Plaintiff. The time awarded is further reduced by 7.1 hours. Costs: Defendants seek \$3,258.14 in costs incurred in this action and the 2022 case. For the reasons set forth above, the costs incurred in the 2022 are not recoverable. The costs otherwise appear reasonable. In sum, the Court GRANTS the motion and awards attorney fees in the amount of \$14,688.50 and \$1,826.34 in costs, for a total of \$16,514.84. Counsel for Defendants shall provide notice of this ruling.
14	Vicens vs. General Motors, LLC	Plaintiffs Francisco Vicens and Jennifer Vicens's ("Plaintiffs" together) Motion for Attorney Fees and Costs ("Motion") is GRANTED. Plaintiffs are the prevailing parties in this action after settling defendant General Motors, LLC ("Defendant"). (Barry Decl., Ex. 1.) Pursuant to Civ. Code §§ 1794(d) and (e) and 15 U.S.C.A. § 2310(d)(2), as the prevailing parties on a lemon law matter, Plaintiffs are entitled to recover reasonable attorney fees. (<i>Serrano v. Priest</i> (1977) 20 Cal. 3d 25, 49; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal. App. 4th 967, 998.) Plaintiffs' counsel requests \$55,483 in attorney fees. The court, having reviewed the billing entries provided by Plaintiffs' counsel finds the hourly billing rates are slightly high, but still within the reasonable range. In reviewing the hours billed the court finds some excessive or unnecessary billed time. Approximately 21.7 hours were excessive or not necessary including time billed related to a non-existent motion to tax costs. The court finds a total of \$12,619.50 in overbilling. The court finds the reasonable sum for attorney fees to be \$42,863.50. (<i>PCLM Group, Inc. vs. Drexler</i> (2000) 22 Cal.4th 1084, 1094-96.) The request for costs totaling \$2,906.62 is granted as Plaintiffs produced a signed memorandum of costs Defendant did not file the required motion to tax said costs. (Civ. Proc. Code § 1033.5(a)(4) and (14); CA ST CIVIL RULES Rule 3.1700(b)(1).) However, even if the court were to consider the opposition as appropriate to attack the costs, Defendant did not meet its burden of showing any of the costs were unnecessary or excessive. The total sum of attorney fees and costs awarded to Plaintiffs against Defendant is: \$42,863.50 + \$2,906.62 = \$45,770.12. Plaintiffs to give notice.

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